

1 CODE 1940
2
3
4
5

6 IN THE FAMILY DIVISION
7 OF THE SECOND JUDICIAL DISTRICT COURT OF THE STATE OF NEVADA
8 IN AND FOR THE COUNTY OF WASHOE

9 IN THE MATTER OF:)
10 EVAKAY BALDES, AND) Case No. JV24-00104
11 ALEXIS CLARK,) JV24-00105
12 MINOR CHILDREN.) Dept. No. JM1

13 **MASTER'S FINDINGS OF FACT AND RECOMMENDATIONS AFTER CONTINUED**
14 **ADJUDICATORY HEARING AS TO JUSTIN BALDES AND DISPOSITIONAL**
15 **HEARING AS TO DONOVAN CLARK, JUSTIN BALDES AND THE**
16 **MINOR CHILDREN**

17 This matter came before the Court for a continued Adjudicatory Hearing as to Justin
18 Baldes pursuant to NRS 432B.530 and NRS 432B.540 and a Dispositional Hearing as to
19 Donovan Clark, Justin Baldes and the minor children pursuant to NRS 432B.530(5) on March
20 20, 2024, before Master Alison Testa and the following persons appeared: Evakay Baldes and
21 Alexis Clark, said minor children, were not present and their appearances were waived by their
22 counsel, Jennifer Jeans, Esq. with Northern Nevada Legal Aid, who appeared by video
23 conference; Justin Baldes, legal father of Evakay Baldes, appeared by video conference, and was
24 represented by Neil Grad, Esq., who also appeared by video conference; Donovan Clark,
25 presumed father of Alexis Clark, appeared by video conference, and was represented by Tirzah
26 Mathews, Deputy Alternate Public Defender, who also appeared by video conference; Jennie
Ballou, case worker from Washoe County Human Services Agency, appeared by video

1 conference, and was represented by Tyler E. Beach, Deputy District Attorney, who also appeared
2 by video conference.

3 The parties were advised of their rights. The Court, having received the Washoe County
4 Human Services Agency's Report to the Court filed on March 7, 2024, and hearing from all
5 interested parties and considering itself fully advised in the premises, hereby makes the
6 following findings and recommendations:

7 FINDINGS

8 1. The Court has jurisdiction pursuant to NRS Chapter 432B, 432B.410, and NRS
9 Chapter 125A.

10 2. An initial inquiry has been made about whether the Indian Child Welfare Act applies.
11 Based upon information provided by the parents or obtained by the Washoe County Human
12 Services Agency ("WCHSA"), the Indian Child Welfare Act does not apply.

13 3. Justin Baldes was properly served with the Summons and Petition and advised of his
14 right to be represented by an attorney.

15 4. Notification of this hearing was properly served upon the parties.

16 5. Justin Baldes submitted to the allegations contained in the Petition for Hearing filed
17 February 5, 2024.

18 6. The allegations contained in the Petition for Hearing filed February 5, 2024, are
19 sustained as to Justin Baldes.

20 7. Evakay Baldes is in need of protection pursuant to NRS 432B.330(1)(b) as Justin
21 Baldes, a person responsible for her welfare, subjected her to neglect.

22 8. The current physical placement of said children in family foster care is appropriate,
23 the least restrictive, and consistent with the best interest and special needs of the children.
24 Further, it is in the best interest of the children to be placed together pursuant to NRS 432B.550.

25 ///

26 ///

9. Washoe County Human Services Agency has made reasonable efforts to make it safe for the children to return home pursuant to NRS 432B.393 as set forth in section X of the Court Report filed on March 7, 2024. The reasonable efforts include but are not limited to:

- DVA services (declined);
- Drug testing for both parents (declined);
- Motel stay for Ms. McCafferty and the children (declined);
- Voucher for counseling for Evakay (did not follow through);
- Voucher to ACCS for psychosocial with DV add-on, and individual counseling (12 sessions);
- Voucher to Kids First Family Services for couples/family counseling (12 sessions);
- Voucher to Kids First Family Services for parenting classes (8 sessions);
- Voucher to ACCS for Effects of Violence workshop for both parents (6 sessions); and
- Bus passes to both parents.

10. The Case Plan and Service Agreements for Donovan Clark, Justin Baldes, Evakay Baldes and Alexis Clark are appropriate.

11. The permanency plan is reunification.

RECOMMENDATIONS

1. Legal and physical custody and care with the authority to determine the appropriate placement of Evakay Baldes and Alexis Clark shall remain with the Washoe County Human Services Agency, subject to review by the Court.

2. Washoe County Human Services Agency may consent to any and all necessary and/or emergency medical treatment for the children while the children remain in its custody.

3. Justin Baldes is ordered to comply with the Case Plan and Service Agreement filed on March 8, 2024, subject to Court review upon request of any party. The Case Plan and Service Agreement shall be updated upon receipt of evaluation results and/or recommendations.

///

1 4. Donovan Clark is ordered to comply with the Case Plan and Service Agreement filed
2 on March 8, 2024, subject to Court review upon request of any party. The Case Plan and Service
3 Agreement shall be updated upon receipt of evaluation results and/or recommendations.

4 5. Justin Baldes and Donovan Clark shall provide Washoe County Human Services
5 Agency with identifying information, including names, addresses and phone numbers of any
6 relatives with whom the children may be placed.

7 6. Justin Baldes and Donovan Clark shall refrain from harmful or offensive conduct to
8 the children, the other parent, the custodian of the children or any person who has placement, to
9 include discussing the details of this case and any disparaging statement or comments.

10 7. Justin Baldes and Donovan Clark shall reimburse Washoe County Human Services
11 Agency pursuant to NRS 432B.560(2) to defray the expenditures for Evakay Baldes and Alexis
12 Clark while in foster care. Costs of care shall be set at zero (\$0.00) effective January 2024, as
13 the Court does not wish to inhibit reunification efforts.

14 8. A Six-Month Semiannual Review Hearing shall be held on July 10, 2024, at 1:30 p.m.

15 9. A 12-Month Permanency Hearing shall be held on January 8, 2025, at 3:00 p.m.

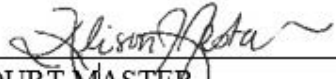
16 10. All previous orders not in conflict with this order will remain in full force and effect.

17 NRS 125C.0045(6) regarding abduction, concealment or detention of a child: PENALTY
18 FOR VIOLATION OF ORDER: THE ABDUCTION, CONCEALMENT OR DETENTION OF
19 A CHILD IN VIOLATION OF THIS ORDER IS PUNISHABLE AS A CATEGORY D
20 FELONY AS PROVIDED IN NRS 193.130. NRS 200.359 provides that every person having a
21 limited right of custody to a child or any parent having no right of custody to the child who
22 willfully detains, conceals or removes the child from a parent, guardian or other person having
23 lawful custody or a right of visitation of the child in violation of an order of this court, or
24 removes the child from the jurisdiction of the court without the consent of either the court or all
25 persons who have the right to custody or visitation is subject to being punished for a category D
26 felony as provided in NRS 193.130.

1 Pursuant to NRS 125C.0045(7) the terms of the Hague Convention of October 25, 1980,
2 adopted by the 14th Session of The Hague Conference on Private International Law, apply if a
3 parent abducts or wrongfully retains a child in a foreign country.

4 IT IS SO RECOMMENDED.

5 Dated: March 20, 2024

6 
7 COURT MASTER

8
9 NOTICE

10 These Recommendations are governed by WDCR 24 and WDFCR 32. Any objection or
11 motion to adopt or modify the master's recommendation shall be filed within 7 days after service
12 of written findings of fact and recommendation. The objection or motion to adopt or modify shall
13 briefly state the primary issues for review.